

FILED

JUN 16 1971

IN THE UNITED STATES COURT OF APPEALS

FOR THE FIFTH CIRCUIT

EDWARD W. WADSWORTH
CLERK

No. 71-1555

DAVID and DOLORES ALVARADO, et al.,

Plaintiffs-Appellants,

v.

EL PASO INDEPENDENT SCHOOL DISTRICT, et al.,

Defendants-Appellees.

Appeal from the United States District Court
for the Western District of Texas

(1971)

Before BELL, AINSWORTH and GODBOLD, Circuit Judges.

BY THE COURT:

This class action by fourteen Mexican-American parents on behalf of themselves and children, and all other children and parents in the El Paso, Texas Independent School District, alleges racial and ethnic discrimination in said school system in violation of the Fourteenth Amendment to the United States Constitution and 42 U.S.C. §§ 1981, 1983, 1988, 2000c-8 and 2000d. In our view, the complaint clearly states a cause of action. *Brown v. Board of Education of Topeka, Kansas*, 347 U. S. 483, 74 S. Ct. 686 (1954); *Hernandez v. Texas*, 347 U. S. 475, 74 S. Ct. 667 (1954). It was improvidently dismissed on

the pleadings by the District Court, see *Conley v. Gibson*, 355 U. S. 41, 78 S. Ct. 99 (1957); *Pred v. Board of Public Instruction*, 5 Cir., 1969, 415 F. 2d 851, 852 n. 1, with reasons assigned which are erroneous as a matter of law. *Brown v. Topeka*, supra; *United States v. Jefferson County Board of Education*, 5 Cir., 1966, 372 F. 2d 836, at 865; decree modified, 380 F. 2d 385; cert. denied, 389 U. S. 840, 88 S. Ct. 67 (1967), and other cases too numerous to list.

The judgment of the District Court is reversed and the cause is remanded with direction that the District Court forthwith hold a full and complete hearing to determine if the school desegregation policies of the School District (especially as they relate to student assignment, desegregation of faculty and other staff, majority to minority transfer policy, transportation, school construction and site selection, and attendance outside system of residence) comply with the principles established in *Swann v. Charlotte-Mecklenburg Board of Education*, 1971, ___ U. S. ___, ___ S. Ct. ___, and this Court's numerous decisions relative to school desegregation, especially *United States v. Jefferson County*, supra; *Singleton v. Jackson Municipal Separate School District*, en banc, 5 Cir., 1970, 419 F. 2d 1211; *Id.* 425 F. 2d 1211; *Carter v. West Feliciana Parish School Board*, 5 Cir., 1970, 432 F. 2d 875; *United States v. Hinds County School Board*, 5 Cir., 1970, 433 F. 2d 611, at 618-619 (as that decision also relates to the requirement that School Boards file semiannual reports during the school year).

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The mandate shall issue forthwith.

REVERSED and REMANDED with direction.